

that she will suffer irreparable harm if the Trustee Sale occurs because the property is her primary residence.

In connection with the Oppositon, Defendant Rocket Mortgage provided no evidence, instead referring to Plaintiff's evidence as conclusory. An unofficial copy of the NOD is attached to the Verified Complaint filed by Plaintiff. Attached to the NOD is the California Declaration of Compliance in which Yvonne Hohfeldt, Loss Mitigation Officer for Rocket Mortgage checked the box indicating that "The mortgage servicer has exercised due diligence to contact the borrower as required by California Civil Code § 2923.55(f), and after satisfying the telephone call requirements and waiting the required two (2) weeks, the mortgage servicer sent to the borrower via certified mail, return receipt requested, the letter as require by California Civil Code § 2923.55(f)(3)." Ms. Hohfeldt did not check the boxes indicating that the telephone numbers on file had been disconnected or that the borrower notified in writing to cease further communication. There was no Request for Judicial Notice of this Declaration, and even if there had been a request, the Court would not take judicial notice of the truthfulness of statements made therein. The statement of Ms. Hohfeldt is not made under penalty of perjury under the laws of the State of California and is therefore not competent evidence.

Before the Court is a person living in the home to which the certified letter would have been sent. She declares under penalty of perjury that no such letter was ever received. Instead of providing a copy of the letter or any of the certified mail paperwork, Rocket Mortgage refers to the Declaration of Compliance. In a preliminary injunction, the Court is not tasked with deciding the ultimate outcome, but determining whether Plaintiff has shown a likelihood of success on the merits. Based solely on the evidence presented, the Court finds that Plaintiff has shown a likelihood of success on the merits of the Second Cause of Action, noting that the Second Cause of Action may need to be amended dependent on wither Civ. Code § 2924.18(b) applies to Rocket Mortgage.

As to the second prong of interim harm, Plaintiff has presented evidence that she lives in the home that Defendants are attempting to foreclose on. Defendant did not present any evidence in the Oppositon and instead argues Defendant would be prejudiced by ongoing costs, lost interest, and continued depreciation risk. On balance, the Court finds that the interim harm to Plaintiff is far greater than the interim harm to Defendant. A preliminary injunction shall issue.

Because the Court is issuing a preliminary injunction based on the Second Cause of Action, the Court need not address the Third Cause of Action.

The Court finds that Plaintiff has met her burden. The request for a preliminary injunction is **GRANTED** preventing Defendants from foreclosing on the subject property until final adjudication on the merits in this matter. Plaintiff did not provide a proposed Order as required by Local Rule of Court 5.17(D). Plaintiff is to prepare the Order.

REDDING CITY BALLET VS. CHRISTENSEN, ET AL.
CASE NUMBER: 23CV-0203221

Tentative Ruling on Order for Appearance at Judgment Debtor Examination (Diana Christensen): This matter is on calendar regarding Plaintiff Redding City Ballet's Application and Order for Appearance and Examination of Diana Christensen. On August 11, 2026, the Court issued an Order to Appear to judgment debtor Diana Christensen. CCP § 708.110(d) requires that personal service of the Order for Appearance and Examination be made on the debtor "not less than 30 days before the date set for the examination." A Proof of Service was filed on August 25, 2026 reflecting personal service on Diana Christensen on August 20, 2026, which is more than 30 days prior to today's hearing. The examination shall proceed.

Tentative Ruling on Order for Appearance at Judgment Debtor Examination (Darrell Christensen): This matter is on calendar regarding Plaintiff Redding City Ballet’s Application and Order for Appearance and Examination of Darrell Christensen, co-owner of The Redding Arts Project. On August 11, 2026, the Court issued an Order to Appear to judgment debtor Darrell Christensen. CCP § 708.110(d) requires personal service of the Order for Appearance and Examination be made on the debtor “not less than 30 days before the date set for the examination.” There is no proof of service on file. Without proof of service on Darrell Christensen, the matter is dropped from calendar.

STUREMAN, ET AL. VS. CIMAGLIA, ET AL.

CASE NUMBER: 26CV-0209673

Tentative Ruling on Demurrer: Cross-Defendants Louann M. Stureman and Marc B. Stureman demur to the Cross-Complaint filed on July 6, 2026 by Catherine L. Cimaglia, James A. Cimaglia, Daniel F. Harney, Trustee of the Harney Family Trust 2018, Sharon G. Harney, Trustee of the Harney Family Trust 2018, Joanne Miser, individually and as Trustee of the Richard and Joanne Living Trust, Richard D. Miser, individually and as Trustee of the Richard and Joanne Living Trust, John William Rodman, individually and as Trustee of the John Williams Rodman Trust 2019, Catherine J. Schmidt, Kurt C. Schmidt, Kathryn L. Starr, Randy K. Starr, and Beverly Taber, individually and as Trustee of the Giles T. Kellogg Living Trust 2023 dated August 1, 2023.

For purposes of this motion, the Court will refer to Cross-Defendants as the Sturemans and the Cross-Complainants as the Misers.

Meet and Confer: CCP § 430.41 requires the demurring party to “meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” The Declaration of Craig J. Bassett indicates compliance with this requirement regarding the demurrer.

Request for Judicial Notice. Both parties made several requests for judicial notice and no objections were received. Each request is granted pursuant to Evid. Code §§ 452 and 453.

Merits. A demurrer should be sustained if the complaint fails to “state facts sufficient to constitute a valid cause of action.” CCP § 430.10(e). The court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” *Hood v. Hacienda La Puente Unified School District* (1998) 65 Cal. App. 4th 435, 438. No matter how unlikely, a plaintiff’s allegations must be accepted as true for the purpose of ruling on a demurrer. *Del. E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604. A plaintiff must plead ultimate facts that acquaint the defendant with the nature, source and extent of plaintiff’s causes of action. *Doe v. City of Los Angeles* (2007) 42 Cal. 4th 542, 550. The Cross-Complaint alleges two causes of action. The First Cause of Actions seeks to quiet title to an irrevocable license issued in Shasta County Case No. 194255 and the Second Cause of Action is nuisance. Sturemans demur to both.

First Cause of Action. The Sturemans demur to the First Cause of Action on the basis of claim preclusion because the Misers filed a quiet title cause of action in the previous matter that was summarily adjudicated in favor of the Sturemans. The Court notes that the previous quiet title action was as to an easement, not an irrevocable license.

The Sturemans also assert that one cannot quiet title to an irrevocable license. The irrevocable license at issue is not a property right.

[A] license does not create or convey any interest in the real property; it merely makes lawful an act that otherwise would constitute a trespass. (See 6 Miller & Starr, *supra*, § 15:2, 15-10 [“The licensee has a personal privilege but does not possess either an interest or right in the land or any estate in the property.” (fn. omitted)]; *San Jose Parking, Inc. v. Superior Court* (2003) 110